

U.P. Avas Evam Vikas Parishad (Delegation of Power By The Board and The Housing Commissioner) Rules, 1968

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State of Uttar Pradesh - Act

U.P. Avas Evam Vikas Parishad (Delegation of Power By The Board and The Housing Commissioner) Rules, 1968

UTTAR PRADESH

India

U.P. Avas Evam Vikas Parishad (Delegation of Power By The Board and The Housing Commissioner) Rules, 1968

Rule

U-P-AVAS-EVAM-VIKAS-PARISHAD-DELEGATION-OF-POWER-BY-THE-BOARD-AND-THE-HOUSING-COMMISSIONER-RULES-1968 of 1968

Published on 6 July 1968

Commenced on 6 July 1968

[This is the version of this document from 6 July 1968.]

[Note: The original publication document is not available and this content could not be verified.]

U.P. Avas Evam Vikas Parishad (Delegation of Power By The Board and The Housing Commissioner) Rules, 1968

Published vide Notification No. 2185-I-ka/XXXVII-16-IX (3)-66, dated June 26, 1968, published in U.P. Gazette, Part-I-ka, dated 6th July, 1968, pp. 1995-96.

070.

In exercise of the powers under clause (g) of sub-section (2) of Section 94, read with sub-sections (1) and (2) of Section 12 of the Uttar Pradesh Avas Evam Vikas Parishad Adhiniyam, 1965 (U.P. Act No. I of 1966) the Governor of Uttar Pradesh is pleased to make the following rules regarding Delegation of Powers by the Board and the Housing

Commissioner:

1.

Short title and commencement.

(1)

These rules may be called the U.P. Avas Evam Vikas Parishad (Delegation of Powers by the Board and Housing Commissioner) Rules, 1968.

(2)

They shall come into force with effect from the date of their publication in the Official Gazette.

2.

Definition.

- In these rules unless there is anything repugnant in the subject or context -

"Act means the Uttar Pradesh Avas Evam Vikas Parishad Adhiniyam, 1965 (U.P. Act No. I of 1966).

3.

Subject to the provisions of Section 12 of the Uttar Pradesh Avas Evam Vikas Parishad Adhiniyam, 1965 and subject to such conditions and restrictions including the condition of review as may be specified from time to time by the Board or the Housing Commissioner, as the case may be -

(a)

the Board may delegate to any committee appointed by it or to the Housing Commissioner or any officer of the Board such of its powers and duties under the said Act, other than those specified in the Schedule;

(b)

the Housing Commissioner may delegate to any officer of the Board any of his powers and duties other than those delegated to him under sub-suction (1) of Section 12 of the Act, as he may deem necessary.

4.

Whenever there is delegation of powers and duties by the Board or the Housing Commissioner a copy of the order by which delegation is made shall be submitted for information to the State Government and to the Board also in the latter case:

Schedule

Non-delegable powers of the Board -

Section

Powers

8(1)

Creation of posts and prescription of salaries in the time scale of pay or emoluments and allowances of the officers and servants of the Board subject to the condition that the power for creation of posts in the prescribed scales for a period of three months may be

9(1)

Establishment of Housing Units.

31

Abandonment, modification or sanction of scheme.

33

Alteration of scheme after commencement.

34

Execution of Scheme.

46

Powers of Board to undertake other projects at the instance of others.

47(1)

Execution of other schemes by the Board.

50(1)

and (3) Declaration regarding betterment fee.

51(1)

Declaration regarding completion of a Scheme for the purpose of determining betterment fee.

58(3)

Raising of loans or entering into financial arrangement for the purpose of the Act.

59(1)

Issue of debentures.

60(1)

Establishment of a sinking fund.

60(3)

Creation of a trust.

63(1)

Annual and Supplementary Financial Estimates and programmes of activities of the Board.

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